

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY REPEALING AND RE-ENACTING SECTION 17.80.080, SIGNS, OF CHAPTER 17.80, P PUBLIC DISTRICT.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That certain chapters and sections of Title 17, Zoning, of the Cheyenne City Code are hereby amended as set out in this ordinance by repealing and re-enacting Section 17.80.080, Signs, of Chapter 17.80, P Public District. Sections currently existing within Title 17, Zoning, and Chapter 17.80, P Public District, not set out within this ordinance remain unchanged.

Section 2. That Title 17, Zoning, Chapter 17.80, P Public District, Section 17.80.080, Signs, is hereby repealed and re-enacted to read as follows:

17.80.080 - Signs.

- A. Definitions. For the purposes of this Section, the following term shall be defined as follows:
- "Low-profile sign" means a sign built into or placed upon the ground by way of an ornamental structure that is not part of a building, and where the surface area of the structure does not exceed 50% of the sign area of the sign mounted upon it.
- B. Signs are allowed in this district as follows:
1. Wall Signs up to 20% of the wall area, but no more than 400 square feet total.
 2. One Projecting Sign per street frontage no greater than 32 square feet in area and projecting no more than 5 feet from the surface of the wall. A Projecting Sign shall have a clearance of at least 10 feet from the ground, and shall project no higher than the wall to which it is affixed.
 3. One Freestanding or Low-profile Sign per street frontage or building complex as limited by the table below.

Table 1. Requirements for Freestanding and Low-Profile Signs in the P District				
	Freestanding Sign Limits		Low-Profile Sign Limits	
Distance from Right-of-Way (feet)	Maximum Height (feet)	Maximum Area (square feet)	Maximum Height (feet)	Maximum Area (square feet)
5 or less	10	20	8	40
5-10	12	30	8	60
10-15	14	40	10	70
15-20	16	50	12	80
20-25	18	60	12	90
Over 25	20	70	12	100

4. Advertising signs or banners at athletic fields with the approval of the director of parks and recreation.
5. A low-profile sign may include an Electronic Message Center in accordance with the following limitations:
 - a. Electronic message centers may comprise up to 15% of the total allowed sign area. Electronic Message Centers for Entertainment Venues with greater than 1,000 seats may comprise up to 50% of the total allowed sign area.

- b. Message displays shall remain fixed for at least eight seconds.
- c. No animation, video, or other non-static display shall be allowed.
- d. No blinking, intermittent, flashing or moving lights shall be allowed.
- e. Electronic message centers shall not increase the ambient lighting level by more than 0.3 foot candles when measured via a foot candle meter at any property line. Electronic message centers shall have a light-sensing device that adjusts the brightness as ambient light conditions change to conform to the requirements of this subsection.
- f. Electronic message centers shall not be constructed within 150 linear feet of the property line of a duplex, single family dwelling, or townhouse located in any of the following zone districts: LR-1, LR-2, MR-1, MR-2, or MUR.
- g. Transitions between messages shall be accomplished in 2 seconds or less by employing immediate, dissolve, or fade method.

Section 3. That this ordinance shall be in full force and effect upon its passage and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

(S E A L) _____
RICHARD L. KAYSEN, MAYOR

ATTEST:

CAROL INTLEKOFER, CITY CLERK

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